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අති විශේෂ EXTRAORDINARY

අංක 1961/29 – 2016 අප්‍රේල් 07 වැනි බ්‍රහස්පතින්දා – 2016.04.07

No. 1961/29 – THURSDAY, APRIL 07, 2016

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/15/07/2011.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON (1956 REVISED EDITION)

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968, dated 08.01.2013 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1793/22 dated 18.01.2013 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 05.12.2012.

Mr. I. M. P. Illangasinghe, No. 261, Balagolla, Kengalla, of the one part

and

Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10, of the other part

was referred to Mr. V. Vimalarajah for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 08.01.2013.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
05th April, 2016.

04 - 867/1



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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2016.04.07

PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 07.04.2016

My No.: IR/15/07/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Mr. I. M. P. Illangasinghe, No. 261, Balagolla, Kengalla, of the one part

and

Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10, of the other part

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Sarath Liyanage, No. 13/30, Sarvodaya Mawatha, Kesbewa, Piliyandala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
05th April, 2016.

My No.: IR/15/07/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. I. M. P. Illangasinghe, No. 261, Balagolla, Kengalla, of the one part

and

Mahaweli Authority of Sri Lanka, No. 500, T. B. Jayah Mawatha, Colombo 10, of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether unjust has been caused to Mr. I. M. P. Illangasinghe, employee of the Mahaweli Authority of Sri Lanka by not being placed in the suitable post in accordance with his seniority with effect from 01.01.2005, and if so, to what relief he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 1st day of March, 2016.

04 - 867/2

My No.: IR/10/60/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Mr. Anushka Kumarasinghe, 156 F, Depot Road, Wennappuwa, of the one part

and

Leco Projects (Pvt) Ltd., No. 411, E. H. Cooray Building, Galle Road, Colombo 03, of the other part

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. P. Nawaratne, No. 570/B/1, Ekamuthu Mawatha, Off Nugegoda Road, Thalawathugoda to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
05th April, 2016.

My No.: IR/10/60/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. Anushka Kumarasinghe, 156 F, Depot Road, Wennappuwa, of the one part

and

Leco Projects (Pvt) Ltd., No. 411, E. H. Cooray Building, Galle Road, Colombo 03, of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether the non-provision of the vehicle maintained by the Company and the fuel allowance, which were Conditions of employment of Mr. Anushka Kumarasinghe who worked as a Project Manager at Leco Projects (Pvt) Limited, from 09.03.2013 to 22.04.2013, the period during which he was interdicted and from 22.04.2013 to 31.07.2013, the period during which his services were restricted to the office are justified and if not so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18th day of February, 2016.

My No.: IR/22/07/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968, dated 04.10.2013 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1832/32 dated 17.10.2013 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 06.09.2013.

Mr. D. Wimalasena, G. 148, Arandara, Atala, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part

was referred to Mr. K. R. M. N. Lawrence for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 04.10.2013.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
05th April, 2016.
04 - 869/1

My No.: IR/22/07/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Mr. D. Wimalasena, G. 148, Arandara, Atala, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Suneth Lokubogahawatta, No. 89/F, Kumudu Mawatha, Nampamunuwa, Piliyandala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo.
05th April, 2016.

My No.: IR/22/07/2011.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. D. Wimalasena, G. 148, Arandara, Atala, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matters in dispute between the aforesaid parties are -

01. Whether the non-payment of arrears of salary to Mr. D. Wimalasena, in accordance with the promotion made on 01.01.2002, by the Sri Lanka Transport Board is just, and if not so, to what reliefs he is entitled.
02. Whether the salary increments first being paid on two occasions to Mr. D. Wimalasena on 18.09.2002 and 21.10.2002 and the same being, cancelled and recovered through circular No. 2004/04 is just, and if not so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 1st day of March, 2016.

04 - 869/2

My No.: IR/21/05/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatta, Talangama, (On behalf of Mr. Chaminda Stouter), of the one part

and

Avery Dennison Lanka (Pvt) Ltd., Block B, Export Processing Zone, Biyagama, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. S. M. S. Jayawardena, No. 213, First Lane, Egodawatta, Boralesgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
05th April, 2016.

My No.: IR/21/05/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatta, Talangama, (On behalf of Mr. Chaminda Stouter), of the one part

and

Avery Dennison Lanka (Pvt) Ltd., Block B, Export Processing Zone, Biyagama, of the other part.

STATEMENT OF MATTER IN DISPUTE**The matter in dispute between the aforesaid parties is -**

Whether the claim made by the Inter Company Employees Union that Chaminda Stouter has been caused injustice by Avery Dennison Lanka (Pvt) Ltd, Block B, Export Processing Zone, Biyagama at the Performance Evaluation of employees in year 2011 is justified, and if so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 10th day of February, 2016.

04 - 870

My No.: IR/COM/04/E/2015/129.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)****Order under Section 4 (1)**

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

01. Mr. T. D. Sunil Dayaratne, No. 53/121, Keenagahalanda Watta, Kalagedihena.
02. Mr. K. D. L. Jagath Kamalpem, No. 8/1B, Nayaka Road, Katunayaka
03. Mr. W. N. P. Fernando, No. 36, Sri Sumangala Road, South Kalutara - North.
04. Mr. W. A. A. Donal Raj Kumar, Temple Road, Mahena, Warakapola, of the one part

and

Sri Lankan Catering Limited, Airline Centre, Bandaranaike International Airport, Katunayaka, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Upali Samaraweera, D 40, Judges' Quarters, Beddagana Road, Kotte to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
05th April, 2016.

My No.: IR/COM/04/E/2015/129.

**THE INDUSTRIAL DISPUTES ACT CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

01. Mr. T. D. Sunil Dayaratne, No. 53/121, Keenagahalanda Watta, Kalagedihena.
02. Mr. K. D. L. Jagath Kamalpem, No. 8/1B, Nayaka Road, Katunayaka
03. Mr. W. N. P. Fernando, No. 36, Sri Sumangala Road, South Kalutara - North.
04. Mr. W. A. A. Donal Raj Kumar, Temple Road, Mahena, Warakapola, of the one part

and

Sri Lankan Catering Limited, Airline Centre, Bandaranaike International Airport, Katunayaka, of the other part

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is -

Whether the claim made by Mr. T. D. Dayaratne, Mr. K. D. L. Jagath Kamalpem, Mr. W. N. P. Fernando and Mr. W. A. A. Donal Raj Kumar who worked at Sri Lankan Catering Ltd to be given bonus, increases of salary and arrears of gratuity for the period from 01.04.2013 to the retirement date of each employee, following the backdating of the collective agreement signed on 28.11.2014 to 01.04.2013 is just, and if so, to what reliefs each of them is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18th day of February, 2016.

04 - 871